

R 323.2410 Management Practices

Rule 2410:

- (1) A person shall not apply bulk biosolids to the land if it is likely to adversely affect a threatened or endangered species listed under section 36503 of the act or its designated critical habitat.
- (2) A person shall not apply bulk biosolids to agricultural land, a forest, a public contact site, or a reclamation site that is flooded, saturated with water, frozen, or snow-covered so that the bulk biosolids enter a wetland or other waters of the state.
- (3) A person may subsurface inject biosolids on frozen or snow-covered ground as long as there is substantial soil coverage of the applied biosolids. A person shall not surface apply bulk biosolids, other than exceptional quality biosolids, on frozen or snow-covered ground, unless otherwise approved by the department.
- (4) A person shall not apply bulk biosolids on lands having a slope of more than 6% for surface application or more than 12% for subsurface injected biosolids, unless the person uses the bulk biosolids in accordance with a department-approved site management plan.
- (5) A person shall apply bulk biosolids to agricultural land, a forest, a public contact site, or a reclamation site at an application rate that is equal to, or less than, the agronomic rate, unless the person that applies bulk biosolids in accordance with a department-approved site management plan.
- (6) A generator or distributor shall affix a label to the bag or other container in which biosolids are sold or given away for application to the land or the generator or distributor shall provide an information sheet to the person who receives biosolids sold or given away in another container for application to the land. The label or information sheet shall contain all of the following information:
 - (a) The name and address of the person who prepared the biosolids that are sold or given away in a bag or other container for application to the land.
 - (b) A statement that the application of the biosolids to the land is prohibited unless applied according to the instructions on the label or information sheet.
 - (c) The annual whole biosolids application rate for biosolids that do not cause any of the annual pollutant loading rates in table 4 of R 323.2409(5)(d) to be exceeded.
- (7) A person that applies biosolids shall perform soil fertility tests on soils sampled from each application site before initial biosolids application. The person shall resample and test on a regular basis so that the last soil fertility test is not more than 2 years old at the time of the next biosolids application.
- (8) For agricultural land, a person shall apply biosolids in accordance with agronomic rates. If the Bray P1 soil test level exceeds 300 pounds (P) per acre (150 ppm), or if the Mehlich 3 soil test level exceeds 340 pounds (P) per acre (170 ppm) in site soils, then the person shall not apply biosolids until the soil P test level decreases to less than 1 of these values.

Certification

"I certify, under penalty of law that the information that will be used to determine compliance with the management practices in R 323.2410 have been prepared for each site on which bulk biosolids are applied under my direction and supervision in accordance with the system designed to ensure that qualified personnel properly gather and evaluate the information. I am aware that there are significant penalties for false certification including the possibility of fine and imprisonment."

Project: Cadillac WWTP

Signature: **Russ Eberhart** Date: 10/2/2018
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